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LINE 6

25-CIV-00194

DAVID BERNARD PARVIN VS. SANDEEP KHANNA, ET AL.

DAVID BERNARD PARVIN
SANDEEP KHANNA

NELSON W GOODELL
PRO SE

DEFENDANT ASAP COLLECTIONS SERVICES MOTION TO STRIKE PORTIONS OF PLAINTIFF'S THIRD AMENDED COMPLAINT

TENTATIVE RULING:

Defendant ASAP Collection Services' Motion to Strike Portions of Plaintiff David Bernard Parvin's Third Amended Complaint is DENIED or is MOOT.

Plaintiff David Bernard Parvin's Request for Judicial Notice is GRANTED as to the existence and legal effect of the documents as records of the county recorder and of the Court but not the truth of any matter therein. (See *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 194; *Middlebrook-Anderson Co. v. Southwest Sav. & Loan Assn.* (1971) 18 Cal.App.3d 1023, 1038.)

A. Order Sealing Records

Portions of the Third Amended Complaint ("TAC") were sealed by court order on January 29, 2026. (Jan. 29, 2026 Order.) In support of its motion to strike, Defendant ASAP Collection Services ("ASAP") submitted an unredacted copy of the TAC as exhibit A to the declaration of Peter C. Catalanotti in support of the demurrer.

In sealing portions of the TAC, the Court found that, according to the declaration of Parvin's counsel submitted in support of the motion to seal, paragraphs 23–24, 82–83, 85, and 93–96 of the TAC contain Parvin's private medical information. (See Aug. 7, 2025 Declaration of Nelson Goodell, ¶ 3.)

Medical records are to be considered "presumptively private," such that a party to moving to seal is "not required to state the obvious in a declaration, that [he or] she would be personally embarrassed to have [his or] her medical records copied into court records. The public, through its courts and legislatures, has recognized that medical records are constitutionally private and statutorily confidential." (*Oiye v. Fox* (2012) 211 Cal.App.4th 1036, 1070.) While the allegations are not medical records per se, the Court determined that the information set forth in the allegations is sufficiently detailed as to be analogous.

The evidence showed that there existed and continues to exist an overriding interest that overcomes the right of public access to the record, the interest supports sealing the record, and there is a substantial probability the interest will be prejudiced if the record is not sealed. The

Court further ordered only those paragraphs containing the private medical condition to be sealed, finding that the proposed sealing was narrowly tailored and there appeared to be no less restrictive means to protect the information.

Based on the same evidence, the Court makes the same findings with respect to the copy of the TAC attached as exhibit A and orders paragraphs 23–24, 82–83, 85, and 93–96 of the exhibit placed under seal.

The clerk of the Court shall seal the unredacted copy of the TAC as exhibit A to the declaration of Peter C. Catalanotti in support of the demurrer. ASAP shall file an redacted copy of the declaration within five days after notice of entry of order.

B. All Prayers Supported by Factual Allegations or Moot

ASAP seeks to strike all prayers for general damages, special damages, punitive damages, injunctive relief, costs, attorney fees, and statutory penalties from the TAC—at least with respect to ASAP in particular.

As for punitive damages, ASAP contends the required malice, fraud, or oppression is not sufficiently pleaded. For the reasons discussed with respect to the slander of title cause of action in the ruling on the accompany demurrer, malice is sufficiently alleged.

As for attorney fees, Parvin’s opposition clarifies that he seeks such fees as damages on the slander of title claim (see *Seeley v. Seymour* (1987) 190 Cal.App.3d 844, 865) and under the Rosenthal Fair Debt Collection Practices Act (see Civ. Code, § 1788.62, subd. (c)(1)). ASAP contends that the causes of action are not sufficiently pleaded and lack merit. For the reasons discussed in the ruling on the accompany demurrer, both causes of action are sufficiently pleaded and support an award of attorney fees—either as damages or pursuant to statute.

As for injunctive relief, ASAP contends there is no ongoing or future conduct to be enjoined in this action. However, depending on the resolution of the merits, numerous forms of injunctive relief would appear to be proper. For example, if the alleged foreclosure sale were set aside but the underlying debt not extinguished, an injunction enjoining ASAP from conducting a foreclosure sale not in compliance with law during a subsequent foreclosure would likely be an appropriate remedy.

As to general, special, and statutory damages, ASAP argues that, because damages for pain, suffering, emotional distress, and other noneconomic harms are properly awarded as general damages in certain cases, that a plaintiff cannot request general damages where he is not entitled to noneconomic damages. The Court has sustained the demurrer to the causes of action where Parvin requests general damages (first and third) and thus the request to strike the damages is moot. ASAP makes no argument in support of its request to strike special damages or statutory penalties.

Accordingly, the motion is denied or is moot.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant ASAP Collection Services shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 7

25-CIV-00216

ANTHONY DASHON THORTON VS. #2131 ANGEL SANCHEZ, ET AL.

ANTHONY DASHON THORTON
#2131 ANGEL SANCHEZ

PRO SE
JOANNE TRAN

DEFENDANTS ANGEL SANCHEZ, JERMAINE DAVIS, OSCAR SANCHEZ, AND FLORES- GARCIA'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Defendants' unopposed Demurrer to Plaintiff's First Amended Complaint (FAC) is SUSTAINED WITHOUT LEAVE TO AMEND pursuant to Code of Civil Procedure section 430.10, subdivision (e) and Government Code sections 945.4, 950.2, as follows:

This action pertains to an alleged December 7, 2024 incident during which Plaintiff Anthony Dashon Thornton alleges that he was handcuffed in his residence, taken outside, and placed in a patrol car by defendant police officers Angel Sanchez, Jermaine Davis, Oscar Sanchez, and Flores-Garcia of the East Palo Alto Police Department based on a warrant for another person.

Plaintiff's operative FAC nominally alleges causes of action for breach of contract, common counts, and breach of the covenant of good faith and fair dealing. Defendants argue that each cause of action is subject to demurrer for failure to comply with the claims presentation requirements of the Government Claims Act and for failure to state facts sufficient to constitute a cause of action.

California's Government Claims Act (Gov. Code sections 810–996.6) governs tort liability for public entities and their employees. (Gov. Code, § 810.) Under Government Code section 905, all claims for money or damages against local public entities must be presented in accordance with the Act's procedures. (Gov. Code, § 905.) Government Code section 945.4 reinforces this requirement by providing that no suit for money or damages may be brought against a public entity until a written claim has been presented and acted upon or deemed rejected by the governing board. (Gov. Code, § 945.4.) These requirements are not merely procedural hurdles but have been characterized as substantive conditions precedent that are an integral part of the plaintiff's cause of action. (*Williams v. Horvath* (1976) 16 Cal. 3d 834, 842.)

A critical statute governing suits against individual public employees is Government Code section 950.2 which provides that “a cause of action against a public employee or former public employee for injury resulting from an act or omission in the scope of his employment as a public employee is barred if an action against the employing public entity for such injury is barred” for failure to comply with claim presentation requirements. (Gov. Code, § 950.2.) Notably, this bar applies “even though the public entity is immune from liability for the injury.” (*Id.*) Thus, for state tort claims, the claim presentation requirement applicable to a public entity extends
